

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

VS. Case No. 72CR-2004-000000118844-A

Maria-Alejandra O'Shaughnessy-Whitfield

DEFENDANT

(First, Middle and Last name)

**PETITION TO SEAL RECORDS OF NOLLE PROSEQUI, DISMISSALS,
JUDGMENTS OF ACQUITTAL, AND CHARGES NOT FILED UNDER
ACT 1460 OF 2013; A.C.A.16-90-1401, Et. Seq.**

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:
Breaking or entering a vehicle, and criminal mischief in the first degree

in violation of A.C.A. § _____
2. ☐ An Order of Nolle Prosequi was entered in this case more than one (1)
year ago and the prosecuting attorney or the city attorney has not refiled
said charges against the Defendant; or
☐ An Order of Dismissal has been entered in this case; or
☐ A Judgment of Acquittal was entered in this case and the acquittal was
not for reason of mental disease or defect under A.C.A. § 5-2-301, et seq.;
or
☐ The prosecuting attorney or city attorney did not file charges in this
case.
3. The Defendant has paid all filing fees required to be paid with the filing of
this Petition mandated by A.C.A. § 16-90-1419.

4. ☐ Defendant has no pending felony charges in any state or federal court;
or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

5. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq)
6. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, Maria-Alejandra O'Shaughnessy-Whitfield, prays this Court enter an Order Sealing the above referenced Nolle Prosequi, Dismissal, Judgement of Acquittal, or Charges Not Filed pursuant to A.C.A. §16-90-1410.

1188 Upper Ouachita Crossing Road, Apartment 14B

City: Fayetteville

State: AR Zip code: 72701-2214

Defendant's Address

Defendant's Signature

Date

VERIFICATION

STATE OF ARKANSAS

COUNTY OF _____

Comes the Petitioner, _____, under oath and states that the foregoing Petition is true and correct to the best of my knowledge and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of

_____, 20_____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB 1968-12-31

FBI No. (if known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. 72CR-2004-000000118844-A

Maria-Alejandra O'Shaughnessy-Whitfield

DEFENDANT

(First, Middle and Last name)

**ORDER TO SEAL RECORDS OF NOLLE PROSEQUI, DISMISSALS,
JUDGMENTS OF ACQUITTAL, AND CHARGES NOT FILED UNDER
ACT 1460 OF 2013; A.C.A.16-90-1401, Et. Seq.**

Before the Court is the Petition of the Defendant to seal his/her record. The Court finds and orders as follows:

1. The Defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of:

A Class _____ ☐felony ☐misdemeanor in violation of A.C.A. § _____

2. ☐ An Order of Nolle Prosequi was entered in this case more than one (1) year ago and the prosecuting attorney or the city attorney has not refiled said charges against the Defendant; or
☐ An Order of Dismissal has been entered in this case; or
☐ A judgment of Acquittal was entered in this case and the acquittal was not for reason of mental disease or defect under A.C.A. §5-2-301, et seq.; or
☐ The prosecuting attorney or city attorney did not file charges in this case.

3. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A §16-90-1419.

4. ☐ Defendant has no pending felony charges in any state or federal court;
or

☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

5. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq)

6. The preponderance of the evidence shows that the granting of this Petition does not place the public at risk and it does further the interests of justice.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, Maria-Alejandra O'Shaughnessy-Whitfield, to seal the above referenced order of Nolle Prosequi, Order of Dismissal, Judgment of Acquittal, or Charges Not Filed pursuant to A.C.A. §16-90-1410 should be, and hereby is GRANTED.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information Center, the Administrative Office of the Courts, the prosecuting and/or city attorney as the case may be, the District Court Clerk, if applicable, and the arresting agency. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB 1968-12-31

FBI No. (if known) _____